

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Colin Gardner	Team: Squad #11	CCRB Case #: 201600722	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 01/28/2016 1:45 PM	Location of Incident: Little Neck Parkway and Northern Blvd. Parking lot of Chase Bank.	18 Mo. SOL 7/28/2017	Precinct: 111		
Date/Time CV Reported Thu, 01/28/2016 2:15 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Thu, 01/28/2016 3:03 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Victor Daniels	04925	929990	111 PCT
2. POF Natasha Hariprashad	18971	930314	111 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Natasha Hariprashad	Abuse: PO Natasha Hariprashad refused to provide her name to § 87(2)(b)	A . Unsubstantiated
B . POM Victor Daniels	Abuse: PO Victor Daniels refused to provide his name to § 87(2)(b)	B . Unsubstantiated

Case Summary

On January 28, 2016, at approximately 1:45 p.m., PO Natasha Hariprashad and PO Victor Daniels from the 111th Precinct pulled over § 87(2)(b) in a Chase Bank parking lot located at the corner of Northern Boulevard and Little Neck Parkway in Queens. PO Hariprashad and PO Daniels allegedly refused to provide their names and shield numbers upon § 87(2)(b)'s request for that information (**Allegations A & B**). § 87(2)(b) was issued a summons for not wearing a seatbelt regarding this incident (**see Board Review 6**).

There is no video footage for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(b) did not file a Notice of Claim regarding this incident (**see Board Review 7**).

Civilian and Officer CCRB Histories

- This was the first CCRB complaint filed by § 87(2)(b) (**see Board Review 4**).
- PO Natasha Hariprashad has been a member of the service for 13 years and there are no substantiated CCRB allegations against her.
- PO Victor Daniels has been a member of the service for 13 years and there are no substantiated CCRB allegations against him

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Allegation A – Abuse of Authority: PO Natasha Hariprashad refused to provide her name and shield number to § 87(2)(b)

Allegation B – Abuse of Authority: PO Victor Daniels refused to provide his name and shield number to § 87(2)(b)

The following facts are undisputed: § 87(2)(b) argued about whether or not she was wearing a seatbelt before providing her identification, and after being issued the summons she exited her vehicle to argue the seatbelt summons that she was issued by PO Hariprashad. Both PO Hariprashad and PO Daniels heard § 87(2)(b) ask for their names and shield numbers.

§ 87(2)(b) acknowledged arguing with PO Hariprashad about whether or not she was wearing a seatbelt before providing her documentation. PO Hariprashad walked back to the police vehicle and returned to § 87(2)(b)'s vehicle approximately one to two minutes later with a rolled up ticket in her hand. PO Hariprashad handed the rolled up ticket to § 87(2)(b).

§ 87(2)(b) through her window and § 87(2)(b) exited her vehicle to ask PO Hariprashad, “Why did you give me the ticket? I had my seat belt on.” § 87(2)(b) was standing at her driver’s side rear bumper and PO Hariprashad was standing approximately four feet away as she argued with PO Hariprashad about the summons.

PO Daniels then exited the marked police vehicle for the first time. PO Daniels stood next to PO Hariprashad, and PO Daniels told § 87(2)(b) to be quiet and get back into her vehicle.

§ 87(2)(b) recognized PO Daniels who had pulled her over twice in January. § 87(2)(b) told PO Daniels that the situation was not right and that she was going straight to the police stationhouse. § 87(2)(b) addressed both officers standing next to one another and said, “I want your names and your badge numbers.” § 87(2)(b) stated in her initial phone statement that she asked both officers for their names and shield numbers, but during her verified interview § 87(2)(b) stated that she only asked PO Daniels for both officers’ information. § 87(2)(b) clarified in a phone statement following her verified interview that she directed her request at both officers individually. PO Daniels then told § 87(2)(b) “Whatever you need is on the ticket.” PO Hariprashad was still standing next to PO Daniels at this point and remained silent; PO Hariprashad did not speak again after PO Daniels exited the police vehicle. § 87(2)(b) informed PO Daniels that she could not read the ticket, and reiterated her request for PO Hariprashad’s and PO Daniels’ names and badge numbers. PO Daniels responded, “You better get into your car.” § 87(2)(b) complied with PO Daniels’ request and drove to the 111th Precinct stationhouse (see Board Review 1).

PO Hariprashad believed that as she approached the passenger side of the vehicle, PO Daniels approached the passenger side. § 87(2)(b) exited her vehicle before PO Hariprashad reached the driver’s side door. When PO Hariprashad returned to § 87(2)(b)’s vehicle to issue the summons, § 87(2)(b) exited her vehicle again. § 87(2)(b) started arguing with PO Hariprashad. PO Hariprashad did not recall if PO Daniels was standing next to her at that point. PO Hariprashad heard § 87(2)(b) tell PO Daniels that he had pulled § 87(2)(b) over a few days ago. § 87(2)(b) asked PO Hariprashad and PO Daniels for their names and their badge numbers before they walked back to the police vehicle. PO Hariprashad responded to § 87(2)(b) “My name is Officer Hariprashad, and all of the information is on the summons.” She also pointed to her shield number above her name plate on her uniform while verbally providing the shield number to § 87(2)(b) who was standing three to four feet away. PO Hariprashad did not recall if § 87(2)(b) stated she could not read the ticket. PO Hariprashad believed that § 87(2)(b) asked PO Daniels for his name and badge number as well, and he verbally provided both to § 87(2)(b) upon her request (see Board Review 2).

PO Daniels acknowledged being on the passenger side of the vehicle when § 87(2)(b) argued about her seatbelt. PO Daniels believed that § 87(2)(b) opened her door to exit her vehicle, but did not actually exit her vehicle at that point. PO Daniels walked over to the

driver's side of the vehicle after § 87(2)(b) raised her voice. Both officers returned to § 87(2)(b)'s vehicle approximately two minutes later to issue the summons. PO Daniels approached the passenger side of § 87(2)(b)'s vehicle again while PO Hariprashad approached the driver's side. After § 87(2)(b) exited her vehicle, PO Daniels walked over to the driver's side and stood next to PO Hariprashad. This is when § 87(2)(b) stated that she recognized PO Daniels. PO Daniels did not recognize § 87(2)(b). PO Daniels believed that he pulled § 87(2)(b) over once in the past for using a cell phone, but he did not recall the exact details since he conducts twenty car stops per day.

§ 87(2)(b) asked both officers for their names and badge numbers after she sat down in her vehicle. PO Hariprashad responded first and said, "It's on the ticket, but my name is Officer Hariprashad," and she also verbally provided her shield number to § 87(2)(b). PO Daniels did not hear § 87(2)(b) say that she could not read the ticket. PO Daniels then held his badge located on his uniform and said to § 87(2)(b) "I'm Officer Daniels, shield number 4925." PO Daniels believed that § 87(2)(b) had a pen and paper when he verbally provided the information that she requested. § 87(2)(b) informed both officers that she was going to make a complaint, and PO Daniels told § 87(2)(b) "Don't worry ma'am, there's a history of us being here; it's all on record." § 87(2)(b) only asked the officers for their names and shield numbers one time, and both officers provided that information upon her request (see Board Review 3).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
Both officers stated that they each verbally provided their names. PO Hariprashad said she pointed to her shield number and said her information was on the summons, and PO Daniels said he verbally provided his name and shield number. PO Daniels also informed § 87(2)(b) that there was documentation that could establish both officers' identifies. § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Therefore, it is recommended that **Allegations A & B** be closed as **Unsubstantiated**.

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date